

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
COREY POWELL,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER JOHN
ECHEL, SHIELD # 20882, POLICE OFFICER
EDWARD UEHLINGER, SHIELD NO. 14971,
AND POLICE OFFICERS JOHN DOE 1-3, BADGE
NUMBERS UNKNOWN.Defendants.
-----X

Index No:

Date Purchased:

Plaintiff designates

NEW YORK as

Place of Trial

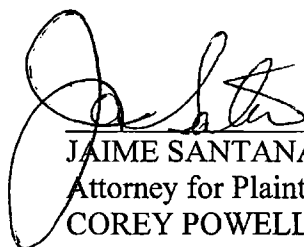
Basis of the venue is

Place of Occurrence

SUMMONS

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 4, 2022

JAIME SANTANA, JR.

Attorney for Plaintiff

COREY POWELL

555 Madison Avenue, 5th Fl.

New York, New York 10022

(212) 448 0055

Defendant's address:
CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
COREY POWELL,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER JOHN
ECHEL, SHIELD # 20882, POLICE OFFICER
EDWARD UEHLINGER, SHIELD NO. 14971
AND POLICE OFFICERS JOHN DOE 1-3, BADGE
NUMBERS UNKNOWN,

Defendants.
-----X

Index No:

**VERIFIED
COMPLAINT**

Plaintiff, COREY POWELL, by and through his attorney JAIME SANTANA, JR.
complaining of Defendants CITY OF NEW YORK, POLICE OFFICERS JOHN ECHEL,
SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND
POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN. respectfully alleges as
follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.
3. That at all times hereinafter mentioned, Defendant POLICE OFFICER JOHN ECHEL, SHIELD # 20882, was employed by Defendant CITY OF NEW YORK as a police officer.

4. That at all times hereinafter mentioned, Defendant, POLICE OFFICER JOHN ECHEL, SHIELD NUMBER 20882, acted within the scope of his employment for Defendant CITY OF NEW YORK.

5. That at all times hereinafter mentioned, Defendant, POLICE OFFICER JOHN ECHEL, SHIELD NUMBER 20882, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

6. That at all times hereinafter mentioned, Defendant POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971, was employed by Defendant CITY OF NEW YORK as a police officer.

7. That at all times hereinafter mentioned, Defendant POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971, acted within the scope of his employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned, Defendant POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

9. That at all times hereinafter mentioned, Defendants POLICE OFFICER JOHN ECHEL, SHIELD # 20882, were employed by Defendant CITY OF NEW YORK as police officers.

10. That at all times hereinafter mentioned, Defendants POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN acted within the scope of their employment for

Defendant CITY OF NEW YORK ASSIGNED TO THE 23rd PRECINCT.

11. That at all times hereinafter mentioned, Defendants POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN. were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of their office as police officers for said city and state.

12. On January 24, 2021, at approximately 4:30 P.M., Plaintiff, COREY POWELL was lawfully at 15 E. 109 Street, Apt. 5C, New York, New York.

13. That, at the aforementioned date, time and place, the Plaintiff, COREY POWELL, was accosted and searched by Defendants, POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN.

14. After the search was completed, Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971, AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, took the Plaintiff into custody and transported to the 23rd Precinct, despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

15. That on January 24, 2021 at approximately 4:30 P.M., Defendant CITY OF NEW YORK by and through its employees including Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, without legal process, forcibly, wrongfully and unlawfully arrested Plaintiff COREY POWELL.

16. Plaintiff COREY POWELL, was then transported to the 23rd where his arrest was

arose.

22. This action falls within one or more of the exceptions set forth in CPLR §1602.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

23. Plaintiff COREY POWELL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

24. That at the aforementioned time and place, Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN placed Plaintiff COREY POWELL under arrest despite Defendants' knowledge that he lacked probable cause to do so.

25. That Plaintiff COREY POWELL has not committed any offense and Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

26. That Defendants, POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, were aware that probable cause did not exist for the arrest and detention of Plaintiff, COREY POWELL, and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff COREY POWELL and such actions were committed in bad faith.

processed. The Plaintiff, COREY POWELL, was held at the 23rd Precinct for a significant period of time. Plaintiff, COREY POWELL was then taken to New York Central Booking for arraignment where he was further held for an additional significant period of time before being sent to Riker's Island. Plaintiff was deprived of his liberty for a total of approximately 2 months.

17. That on January 24, 2021, Defendants CITY OF NEW YORK by and through its employees including Defendants, POLICE OFFICER JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971, POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, initiated criminal proceedings including, but not limited to, an arrest, process, detention at a New York City Precinct (23rd), detention at Central Booking in Manhattan and Court appearance despite Defendants' knowledge that they lacked probable cause to do so.

18. That on or about July 12, 201 the case and all criminal charges against the Plaintiff were dismissed under (Docket/Case Number CR 002227 21 NY, Criminal Court of the City of New York – New York County).

19. That prior to, and within 90 days from the date of injury, Plaintiff duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

20. Upon information and belief, the Municipal 50H Hearing regarding the above claim was held on December 21, 2021.

21. This action is commenced within one year and ninety days after the cause of action

27. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971, AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN. acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff COREY POWELL and such actions were committed in bad faith.

28. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, all committed under color of his authority as a police officer, and while acting in that capacity, Plaintiff COREY POWELL was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

29. As a further result of the above-described acts, Plaintiff COREY POWELL was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

30. Plaintiff COREY POWELL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

31. That Plaintiff COREY POWELL was falsely imprisoned on January 24, 2021 for

approximately two months by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

32. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN intended to confine Plaintiff COREY POWELL and Plaintiff COREY POWELL was conscious of the confinement, and Plaintiff COREY POWELL did not consent to the confinement.

33. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff COREY POWELL and damaging Plaintiff COREY POWELL in his reputation and depriving him of his liberty.

34. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants, POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff COREY POWELL suffered damage, all of which is in violation of his rights under the Constitution and

laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

35. Plaintiff, COREY POWELL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

36. That Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN , misrepresented and falsified evidence before the District Attorney.

37. That Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, did not make a complete and full statement of facts to the District Attorney.

38. That POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971, AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN withheld exculpatory evidence from the District Attorney.

39. That Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, were directly and actively involved in the initiation of criminal proceedings against Plaintiff COREY POWELL.

39. That Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 and AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN lacked probable cause to initiate criminal

proceedings against Plaintiff COREY POWELL.

40. That Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN acted with malice in initiating criminal proceedings against Plaintiff, COREY POWELL.

41. That Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN were directly and actively involved in the continuation of criminal proceedings against Plaintiff COREY POWELL.

42. That Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN lacked probable cause to continue criminal proceedings against Plaintiff COREY POWELL.

43. That Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN , acted with malice in continuing criminal proceedings Plaintiff COREY POWELL.

44. That Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, misrepresented and falsified evidence throughout all phases of the criminal proceeding.

45. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE

OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN the criminal proceedings were terminated in Plaintiff COREY POWELL's favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

46. Plaintiff COREY POWELL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

47. Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

48. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

49. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff COREY POWELL.

50. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff COREY POWELL as alleged herein.

51. The foregoing customs, policies, usages, practices, procedures and rules of the City of

New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff COREY POWELL as alleged herein.

52. Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, while acting under the color of state law, was directly and actively involved in violating Plaintiff COREY POWELL's constitutional rights.

53. All of the foregoing acts by Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN deprived Plaintiff COREY POWELL of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. To be free from malicious abuse of process;
- E. Not to have cruel and unusual punishment imposed upon him;
- F. To receive equal protection under the law.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983**

54. Plaintiff COREY POWELL repeats, reiterates and realleges each and every allegation contained in this complaint.

55. Each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff COREY POWELL's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

56. As a result of the aforementioned conduct of the individual Defendants, Plaintiff COREY POWELL's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
FALSE ARREST UNDER NEW YORK STATE LAW**

57. Plaintiff COREY POWELL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

58. Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, arrested Plaintiff COREY POWELL in the absence of probable cause and without a warrant.

59. As a result of the aforesaid conduct by Defendants, POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971, AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, Plaintiff COREY POWELL was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

60. The aforesaid actions by POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971, AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, constituted a deprivation of Plaintiff COREY POWELL's rights.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER NEW YORK STATE LAW**

61. Plaintiff COREY POWELL repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

62. As a result of the foregoing, Plaintiff COREY POWELL was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

63. Plaintiff COREY POWELL was conscious of said confinement and did not consent to same.

64. The confinement of Plaintiff COREY POWELL was without probable cause and was not otherwise privileged.

65. As a result of the aforementioned conduct, Plaintiff COREY POWELL has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW**

66. Plaintiff COREY POWELL repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

67. On or about January 24, 2021, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants, POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN commenced a criminal proceeding against Plaintiff COREY POWELL, and falsely and maliciously, and without

probable cause, charged Plaintiff with crimes.

68. Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN continued said proceeding despite the fact that they knew or should have known that Plaintiff COREY POWELL had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of Plaintiff.

69. Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN were directly and actively involved in the initiation of criminal proceedings against Plaintiff COREY POWELL.

70. Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, lacked probable cause to initiate criminal proceedings against Plaintiff COREY POWELL.

71. Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, were motivated by actual malice in initiating criminal proceedings against Plaintiff COREY POWELL.

72. Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN

DOE 1-3, BADGE NUMBERS UNKNOWN misrepresented and falsified evidence before the District Attorney.

73. Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, did not make a complete and full statement of facts to the District Attorney.

74. Defendants, POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, withheld exculpatory evidence from the District Attorney.

75. Defendants, POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971, AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, were directly and actively involved in the continuation of criminal proceedings against Plaintiff COREY POWELL.

76. Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, lacked probable cause to continue criminal proceedings against Plaintiff COREY POWELL.

77. Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, were motivated by actual malice in continuing criminal proceedings against Plaintiff COREY POWELL.

78. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN., the criminal proceedings were terminated in Plaintiff COREY POWELL's favor.

AS AND FOR A NINTH CAUSE OF ACTION
FOR NEGLIGENT HIRING AND RETENTION
UNDER NEW YORK STATE LAW

79. Plaintiff COREY POWELL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

80. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971, AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the Defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

81. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, to engage in the wrongful conduct heretofore alleged in this Complaint.

AS AND FOR A TENTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION
UNDER NEW YORK STATE LAW

82. Plaintiff COREY POWELL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

83. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, , in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff COREY POWELL. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

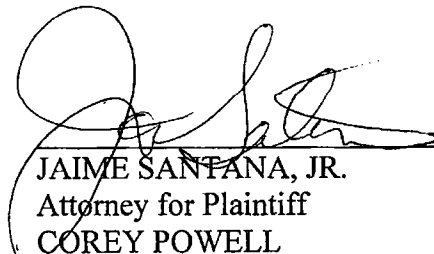
84. The failure of Defendant CITY OF NEW YORK, to train, supervise, discipline or in any other way control Defendants POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, in the exercise of their employment

functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff COREY POWELL.

85. As a result of the foregoing, Plaintiff COREY POWELL is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00).

WHEREFORE Plaintiff COREY POWELL demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICERS JOHN ECHEL, SHIELD # 20882, POLICE OFFICER EDWARD UEHLINGER, SHIELD NO. 14971 AND POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: New York, New York
April 4, 2022



JAIME SANTANA, JR.
Attorney for Plaintiff
COREY POWELL
555 Madison Avenue, 5th Fl.
New York, New York 10022
(212) 448-0055

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF BRONX)

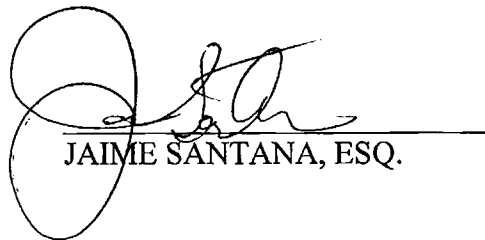
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing **SUMMONS and COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirment maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
April 4, 2022


JAIME SANTANA, ESQ.